

3. 9:00 AM CASE NUMBER: L24-00971
CASE NAME: DISCOVER BANK VS. TRISHA ICKES
*HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO CCP 664.6
FILED BY: DISCOVER BANK
TENTATIVE RULING:

Plaintiff Discover Bank ("Plaintiff") filed a Motion to Enter Judgment on October 21, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on January 6, 2026.

Background

The parties entered into that certain settlement agreement filed on October 25, 2024 (the "Settlement Agreement"), the terms of which included payment by the defendant Trisha Ickes ("Defendant") in the amount of \$3,612.34, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Plaintiff's Counsel filed October 21, 2025 ("Supporting Declaration"), ¶5 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the principal amount of \$3,612.34 **plus costs**, less credits for payments made, in the event of a default. *Id.*, **Exhibit A**, ¶6.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶7. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶6.

After credit for amounts paid, there remains \$2,227.34 due and owing, plus costs of \$297.61. See Supporting Declaration, ¶7; see also Memorandum of Costs filed October 21, 2025.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$2,227.34, plus costs of \$297.61, for a total judgment of \$2,524.95.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.

4. 9:00 AM CASE NUMBER: L25-00027
CASE NAME: CROWN ASSET MANAGEMENT LLC VS. JESSICA FRANKLIN
***HEARING ON MOTION IN RE: TO DISMISS**
FILED BY: FRANKLIN, JESSICA
TENTATIVE RULING:

Defendant Jessica Franklin (“Defendant”) filed a Motion to Dismiss on November 3, 2025 (the “Motion to Dismiss”). The Motion to Dismiss was set for hearing on January 6, 2026. No opposition to the motion has been filed.

Background

Plaintiff Crown Asset Management, LLC (“Plaintiff”) filed its Complaint against Defendant on January 2, 2025. Defendant filed an Answer on February 27, 2025 (the “Answer”).

Analysis

1. Lack of Adequate Notice of the Hearing

Defendant’s motion was signed on October 27, 2025 and filed by the clerk on November 3, 2025. Because the motion, as submitted, did not have an assigned hearing date, time and department, that information was stamped on the caption page by the clerk at the time of filing. However, the moving party’s Proof of Service reflects that the motion papers were served on October 27, 2025 before the hearing information was given by the clerk of the Court. See Proof of Service filed on November 3, 2025.

In such circumstances, a moving party will typically prepare and serve an amended notice of motion to ensure that the opposing party has received proper notice of the date, time and department for the hearing of the motion. No amended notice of motion appears on the docket. No other pleadings were filed by the moving party Defendant reflecting the giving of proper notice of the motion hearing information to the other party.

For this reason alone, the Court would deny the motion.

2. Contentions regarding the Merits

Even if adequate notice had been given, the Court would deny the motion.

Defendant seeks to dismiss the Complaint on two grounds. First, Defendant contends that Plaintiff’s claims are barred by the statute of limitations. The second ground relied upon by Defendant is that Plaintiff has not established legal standing because “Plaintiff has yet to demonstrate that it is the lawful owner or assignee of the debt.”

First, Defendant’s contentions are procedurally improper. If the argument is that the allegations of the Complaint are insufficient to state a cause of action and/or are barred by the statute of limitations on its face, then the proper procedural mechanism to raise such issues would have been by a demurrer. Defendant has already filed an Answer and the time for filing of a demurrer is long since past. Code Civ. Proc. § 430.40(a) (“A person against whom a complaint or cross-complaint has been filed may, within 30 days after

service of the complaint or cross-complaint, demur to the complaint or cross-complaint.”); see CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) (“CJER Civ. Pro.—Before Trial”), § 12.9.

Second, if Defendant seeks to challenge whether Plaintiff can prove its claims or if they are barred based on evidence beyond the pleadings, then there are a number of procedures available to a defendant to seek a pre-trial determination of such matters, such as a motion for summary judgment. A motion to dismiss in this fashion is not one of them.

Third, even if the Court could somehow reach the merits of Defendant’s Motion to Dismiss, Defendant has not shown that Plaintiff’s claims must be dismissed. By Defendant’s own admission, Plaintiff filed suit within the claimed statute of limitations deadline. That the case may take longer to ultimately be adjudicated has nothing to do with the running of a statute of limitations. The statute of limitations is a law that sets the maximum amount of time within which legal proceedings may be *initiated*. See *Shalabi v. City of Fontana* (2021) 11 Cal.5th 842, 843. As to Defendant’s contentions regarding Plaintiff’s legal standing, Plaintiff has alleged that it is a debt buyer and the sole owner/assignee of the subject account and right to pursue Defendant with respect to any obligations thereunder. See Complaint, ¶19. Whether that is true or not cannot be adjudicated by a motion to dismiss.

Disposition

The Court finds and orders as follows:

1. The Motion to Dismiss is DENIED.
2. The Court shall issue the order.

5. 9:00 AM CASE NUMBER: L25-00802
CASE NAME: CITIBANK, N.A. VS. SANDEEP THIARA
HEARING IN RE: MOTION TO DISMISS
FILED BY: THIARA, SANDEEP
TENTATIVE RULING:

Defendant Sandeep Thiara (“Defendant”) filed a Motion to Dismiss on November 6, 2025 (the “Motion to Dismiss”). The Motion to Dismiss was set for hearing on January 6, 2026. The motion is opposed.

Background

Plaintiff Citibank, N.A. (“Plaintiff”) filed its Complaint against Defendant on January 22, 2025. Defendant filed an Answer on April 14, 2025 (the “Answer”).

Analysis

1. Defendant is Not Entitled to Dismissal of the Complaint Based on Defendant’s Unsupported Contentions Regarding the Merits of Plaintiff’s Claims